

		of this state, a court rule, or an order of the court. "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437.) Since Plaintiff Thomas Solar Energy lacks the capacity to prosecute this action due to the FTB suspension, the First Amended Complaint is not drawn or filed in conformity with the laws of this state and is therefore subject to being stricken. Motion for Leave to Amend Answer Defendant Orange County Sanitation District's Motion for Leave to File an Amended Answer is DENIED without prejudice as MOOT in light of the foregoing ruling striking the First Amended Complaint. OSC RE: Legal Representation for Corporate Entity Plaintiff Thomas Solar Energy has not responded to the Order to Show Cause. In light of the foregoing ruling striking the First Amended Complaint on other grounds, the OSC is hereby vacated. An OSC re: Dismissal is set for September 11, 2026 at 9:30 AM in this department. Moving Party shall provide notice.
4	Saadeh vs. Bdair 2022-01248722	Motion for Reconsideration Plaintiff Belal Saadeh's motion for correction and clarification or alternatively for reconsideration is GRANTED, as follows. As requested, the Court on its motion reconsiders its 5/29/26 ruling on defendant Mohamad Bdair's motion to compel further responses to his second set of requests for

	production, Nos. 12 and 13, and also corrects a typographical error therein. (See Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 840 [court’s inherent authority to reconsider interim ruling]; Le Francois v. Goel (2005) 35 Cal.4th 1094, 1105-1108 [same]; In re Marriage of Barthold (2008) 158 Cal.App.4th 1301, 1308 [court may “correct an order that [it] [has] come to believe was erroneous”]; see also Estate of Eckstrom (1960) 54 Cal.2d 540, 544 [court may correct clerical error].) The 5/29/26 ruling describes request for production (RFP) No. 12 as seeking “documents evidencing tax-related damages,” when it seeks only tax returns. (Jammal Decl. at Ex. A.) The 5/29/26 ruling also orders plaintiff to provide a further response to RFP No. 12, despite acknowledging that plaintiff has substantiated his objection to this request based on the tax return privilege, and while also providing that “Plaintiff is not ordered to produce his tax returns.” (Id. at Ex. E [5/29/26 minute order]; see ROA No. 86 [same].) Finally, the 5/29/26 refers to the discovery at issue as “Set One,” when it actually concerns “Set Two.” (See id. at Exs. B, E.) Having reconsidered the underlying motion to compel further responses to second set of requests for production (Jammal Decl. at Ex. B), the Court ORDERS the prior 5/29/26 ruling on that motion VACATED—specifically, that portion of the 5/29/26 minute order from where it reads, “LATER THAT SAME DAY,” through and including the sentence that reads, “Plaintiff’s request for monetary sanctions is DENIED”—and now issues the following ruling on that motion: Upon reconsideration, defendants Mohamed Bdair’s motion to compel plaintiff Belal Saadeh’s further responses to his second set of requests for production of documents is
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		GRANTED IN PART and DENIED IN PART. (Code Civ. Proc. § 2031.310.) As part of his damages, Plaintiff alleges Defendants' conduct resulted in inaccurate tax filings and tax penalties. (FAC ¶¶ 25–28, 91.) Moreover, in response to Form Interrogatory No. 8.1, Plaintiff was asked whether he attributed any loss of income or earning capacity to the incident. Plaintiff responded: "Yes, loss of profits and excess tax liability resulting from the business operations of MB Home Linen & More, the company usurped by Defendants." Defendants served document demands seeking evidence of Plaintiff's tax damages. Request for Production No. 12 seeks "all tax returns evidencing the tax related damages [plaintiff] allegedly sustained." Request for Production No. 13 seeks correspondence with any tax preparers or professionals relating to the alleged tax damages. Plaintiff objected to the production of such documents on the grounds of the attorney-client privilege, work product, premature expert discovery, relevant, privacy, and tax-return privilege, and produced no documents. "Tax returns are privileged from disclosure. The tax return privilege 'is not absolute' and 'will not be upheld when (1) the circumstances indicate an intentional waiver of the privilege; (2) the gravamen of the lawsuit is inconsistent with the privilege; or (3) a public policy greater than that of the confidentiality of tax returns is involved.'" (Strawn v. Morris, Polich & Purdy, LLP (2019) 30 Cal.App.5th 1087, 1098 [cleaned-up].) Defendants seek to invoke the second of the above exceptions. In Wilson v. Superior Court (1976) 63 Cal.App.3d 825 (Wilson), the Plaintiff brought suit against accountants whom she alleged had "negligently and improperly advised her on the tax consequences of a sale of real property," leading to her damages. (Id. at 827.) The Court in Wilson explained: "By her complaint, plaintiff has placed in issue the existence and
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	the content of her tax returns and the tax consequences of the computations thereon. The gravamen of her lawsuit is so inconsistent with the continued assertion of the taxpayer's privilege as to compel the conclusion that the privilege has in fact been waived." (Id. at 830.) "To permit plaintiff to produce evidence of the contents of those returns...while successfully resisting their disclosure on grounds of privilege would be manifestly unfair to defendants. Accordingly, plaintiff can either maintain her lawsuit or the confidentiality of her returns, but not both." (Ibid.) Unlike Wilson, this action concerns a business dispute involving fraud and breach of an agreement. However, as part of his damages Plaintiff alleges Defendants' conduct resulted in inaccurate tax filings and tax penalties. While the Court agrees Plaintiff's tax-related damages are relevant to Plaintiff's claims, they are not the "gravamen" of his lawsuit. Therefore, Plaintiff has not waived the tax return privilege at this time. But the implication of the tax return privilege does not render other documents related to Plaintiff's tax related damages immune from discovery. "The fact that financial records are difficult to obtain or that a tax return would be helpful, enlightening or the most efficient way to establish financial worth is not enough." (Weingarten v. Superior Court (2002) 102 Cal.App.4th 268, 276.) Accordingly, the motion is GRANTED as to request for production No. 13 only, as follows. Plaintiff is ORDERED to provide within 10 days: (1) A further verified response to request for production No. 13, as hereby limited in scope to the years 2018-2020; and (2) To the extent a privilege is claimed, Plaintiff is to produce a privilege log, reasonably identifying the document (date, author, recipient, subject matter) and the claimed privilege.
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		At this time, Plaintiff is not ordered to produce his tax returns. However, the Court reserves the right to reconsider the issue if additional facts are discovered which make the tax returns necessary to substantiate Plaintiff's claim of tax-related damages. Plaintiff's request for monetary sanctions is DENIED. Plaintiff shall give notice.
6	Sandoval vs. Lollicup USA Inc. 2025-01475248	1. Motion for Relief from Waiver of Objections 2. Motion to Compel Deposition (Oral or Written) Motion to Compel Further Answers and Production at Deposition Defendant Lollicup USA Inc.'s motion to compel further answers and production at deposition is GRANTED IN PART and DENIED IN PART, as follows. (See Code Civ. Proc., § 2025.480.) On the resumption of the deposition, plaintiff Michael Sandoval is ORDERED to answer without objection the following two questions: (1) Whether plaintiff has incurred any legal expenses in filing this lawsuit. (See Def. Sep. Stmt. at p. 2; Adams Decl. ¶ 7, Ex. C [Pl. Depo. 25:8-23, 47:6-13].) (2) Whether plaintiff has received any money from the lawsuits he has filed as part of his advocacy work on behalf of the civil rights of visually-impaired persons. (See Def. Sep. Stmt. at p. 3; Adams Decl. ¶ 7, Ex. C [Pl. Depo. 29:24-30:5]; see also Compl. ¶ 15.) The motion is otherwise DENIED. With respect to the remaining question at issue (whether plaintiff has any documents showing he could not access the menu besides the screenshot he produced), plaintiff has already